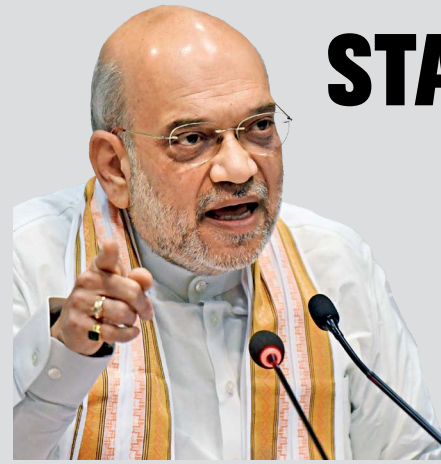
tion, has further created disquiet. Additionally, the drafting of these laws has been criticised for containing poor and ambiguous language.

For example, in January 2024, truck, bus, and fuel tanker drivers across India went on strike against Section 106(2) of the BNS, which prescribes a 10-year prison term and a fine for those causing the "death of any person by rash and negligent driving not amounting to culpable homicide and escaping without reporting it to a police officer or magistrate soon after the incident". The strike ended following an assurance by Union home secretary Ajay Kumar Bhalla that the law will only be implemented after consultations with representatives of the All India Motor Transport Congress. The controversial clause has been kept in abeyance for now.

Ironically, the Parliamentary Standing Committee on Home Affairs had recommended redrafting this clause. The committee noted that the provision's drafting does not clarify whether both actions—staying at the scene and reporting the incident—must be fulfilled. The committee also suggested that this clause violates Article 20(3) of the Constitution, which states that "no person accused of an offence shall be compelled to be a witness against himself".

Several representations have been made to the government in the interim to postpone the implementation of the new criminal laws alleging discrepancies in the provisions. The Bar Council of India intends to initiate discussions with the government to convey the legal fraternity's concerns. It has urged all bar associations and senior advocates to identify and submit specific provisions they consider unconstitutional or detrimental to constitutional democracy. Based on these submissions, the council will set up a committee to recommend necessary amendments.

Ahead of the rollout, the government had conducted extensive preparations, including training initiatives and technological upgrades, to ensure the smooth nationwide implementation of the new laws. However, the gazette notification was issued on February 23, just a week after the Election Commission of India announced the dates for the 18th Lok Sabha election. Consequently, most stakeholders were occupied with the election process, leaving little time for the implementation of these new laws starting July 1. The success of the three new criminal laws will hinge on careful implementation, continuous dialogues with stakeholders and a willingness to address legitimate concerns. ■



Union home minister Amit Shah

STATUTORY ALERT

A look at the major changes introduced in the three new criminal laws: the Bharatiya Nyaya Sanhita, the Bharatiya Nagarik Suraksha Sanhita and the Bharatiya Sakshya Adhiniyam

CONTROVERSIAL PROVISIONS

- Section 124A of the IPC (sedition) is repealed, but Section 150 of the Bharatiya Nyaya Sanhita (BNS) **broadens offences to acts endangering India's sovereignty and integrity, potentially including past sedition cases**
- Police custody for serious offences extends from 15 to 90 days, **raising concerns about police excesses and torture.** Union home minister clarifies that custody cannot be taken in one go for more than 15 days
- Sexual intercourse obtained through deceitful promises, including of false marriage, is penalised with up to 10 years of imprisonment, which, **critics warn, could criminalise consensual relationships**
- Terrorism definition now includes acts disturbing public order or destabilising the country, **raising risks of misuse**
- SP-level officers can decide between **applying UAPA or BNS in terror-related cases without statutory criteria**
- Trials in absentia could lead to **miscarriages of justice, similar to UAPA provisions**
- Preliminary inquiry is required for cases with imprisonment terms of 3-7 years, **possibly delaying legitimate FIRs and giving police discretionary powers**
- **Legal aid from the point of arrest is removed**, potentially jeopardising fair representation for the accused, especially marginalised individuals
- **The Hindi titles of new laws** may violate Article 348 of the Constitution, requiring English in the Supreme Court and the high courts



Graphic by TANMOY CHAKRABORTY